THE UNITED NATIONS (PRIVILEGES AND IMMUNITIES) ACT, 1948

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THE UNITED NATIONS (PRIVILEGES AND IMMUNITIES) ACT, 1948

[1]ACT NO. XX OF 1948

[16th *June,* 1948]

An Act to give effect to the Convention on the Privileges and Immunities of the United Nations.

WHEREAS it is expedient to give effect to the Convention on the Privileges and Immunities of the United Nations, and to enable similar privileges and immunities to be enjoyed by other international organisations and their representatives and officials;

It is hereby enacted as follows:—

1. Short title. This Act may be called the United Nations (Privileges and Immunities) Act, 1948.

2. Conferment on United Nations and its representatives and officers of certain privileges and immunities. (1) Notwithstanding anything to the contrary contained in any other law, the provisions set out in the Schedule to this Act of the Convention on the Privileges and Immunities, adopted by the General Assembly of the United Nations on the 13th day of February 1946, shall have the force of law in Pakistan.

(2) The [2][Federal Government] may, from time to time, by notification in the official Gazette, amend the Schedule in conformity with any amendments, duly made and adopted, of the provisions of the said Convention set out therein.

3. Power to confer certain privileges and immunities on other international organisations and their representatives and officers. Where in pursuance of any international Agreement, convention or other instrument it is necessary to accord to any international organisation[3] and its representatives and officers privileges and immunities in Pakistan similar to those contained in the provision set out in the Schedule, the [2][Federal Government] may, by notification in the official Gazette, declare that the provisions set out in the Schedule shall, subject to such modifications, if any, as it may consider necessary or expedient for giving effect to the said agreement, convention or other instrument apply *mutatis mutandis* to the international organisation[3] specified in the notification and its representatives and officers, and thereupon the said provision shall apply accordingly and, notwithstanding anything to the contrary contained in any other law, shall in such application have the force of law in Pakistan.

4. Power to make rules. The [2][Federal Government] may make rules for carrying out the purposes of this Act.

———————

[1]This Act has been applied to Baluchistan, *see* Gaz. of P., 1953, Pt. I, p. 8; and applied also in the Federated Areas of Baluchistan, *see* Gaz. of P., 1953, Pt. I, p. 152.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950).
[2]Subs. by Federal Adaptation Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[3]The provisions set out in the Schedule to this Act have, subject to certain modifications, been applied to the International Monetary Fund, *see* Gaz. of P., 1952, Pt. I. pp. 66-68.
The provisions of the Schedule to the Act have been applied *mutatis mutandis* to the United Nations International Children's Emergency Fund and its representatives and officers, *see ibid.,* 1953, Pt. I., p. 146.
The provisions of the Schedule to the Act have been applied *mutatis mutandis,* subject to certain modifications to the International Atomic Energy Agency, *see ibid.,* 1965, Pt. I, p. 7.

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(*See* section 2 and 3**)**

ARTICLE I

JURIDICAL PERSONALITY

SECTION 1**.** The United Nations shall possess juridical personality. It shall have the capacity:—

(a) to contract;

(b) to acquire and dispose of immovable and movable property;

(c) to institute legal proceedings.

ARTICLE II

PROPERTY, FUNDS AND ASSETS

SECTION 2. The United Nations, its property and assets wherever located and by whomsoever held, shall enjoy immunity from every form of legal process except in so far as in any particular case it has expressly waived its immunity. It is, however, understood that no waiver of immunity shall extend to any measure of execution.

SECTION 3. The premises of the United Nations shall be inviolable. The property and assets of the United Nations, wherever located and by whomsoever held, shall be immune from search, requisition, confiscation, expropriation and any other form of interference, whether by executive, administrative, Judicial or legislative action.

SECTION 4**.** The archives of the United Nations, and in general all documents belonging to it or held by it, shall be inviolable wherever located.

SECTION 5. Without being restricted by financial controls, regulations or moratoria of any kind,

(a) the United Nations may hold funds, gold or currency of any kind and operate accounts in any currency ;

(b) the United Nations shall be free to transfer its funds, gold or currency from one country to another or within any country and to convert any currency held by it into any other currency.

SECTION 6**.** In exercising its rights under section 5 above, the United Nations shall pay due regard to any representations made by the Government of any Member in so far as it is considered that effect can be given to such representations without detriment to the interests of the United Nations.

SECTION 7. The United Nations, its assets, income and other property shall be:—

(a) exempt from all direct taxes; it is understood, however, that the United Nations will not claim exemption from taxes which are, in fact, no more than charges for public utility services;

[1]This Schedule has been made applicable, *mutatis mutandis,* to the International Organization for Migration (I.O.M) vide SRO 66(KE)/2001, dt 26-12-2000.

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(b) exempt from customs duties and prohibitions and restrictions on imports and exports in respect of articles imported or exported by the United Nations for its official use. It is understood, however, that articles imported under such exemption will not be sold in the country into which they were imported except under conditions agreed with the Government of that country;

(c) exempt from customs duties and prohibitions and restrictions on imports and exports in respect of its publications.

SECTION 8. While the United Nations will not, as a general rule, claim exemption from excise duties and from taxes on the sale of movable and immovable property which form part of the price to be paid nevertheless when the United Nations is making important purchases for official use of property on which such duties and taxes have been charged or are chargeable, Members will, whenever possible, make appropriate administrative arrangements for the remission or return of the amount of duty or tax.

ARTICLE III

FACILITES IN RESPECT OF COMMUNICATIONS

SECTION 9. The United Nations shall enjoy in the territory of each Member for its official communications treatment not less favourable than that accorded by the Government of that Member to any other Government including its diplomatic mission in the matter of priorities, rates and taxes on mails, cables, telegrams, radiograms, telephotos, telephone and other communications; and press rates for information to the press and radio. No censorship shall be applied to the official correspondence and other official communications of the United Nations.

SECTION 10. The United Nations shall have the right to use codes and to despatch and receive its correspondence by courier or in bags, which shall have the same immunities and privileges as diplomatic couriers and bags.

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ARTICLE IV

THE REPRESENTATIVES OF MEMBERS

SECTION 11. Representatives of Members to the principal and subsidiary organs of the United Nations and to conferences convened by the United Nations, shall, while exercising their functions and during their journey to and from the place of meeting, enjoy the following privileges and immunities:–

(a) immunity from personal arrest or detention and from seizure of their personal baggage, and, in respect of words spoken or written and all acts done by them in their capacity as representatives, immunity from legal process of every kind;

(b) inviolability for all papers and documents;

(c) the right to use codes and to receive papers or correspondence by courier or in sealed bags;

(d) exemption in respect of themselves and their spouses from immigration restrictions, aliens registration or national service obligations in the state they are visiting of through which they are passing in the exercise of their functions;

(e) the same facilities in respect of currency or exchange restrictions as are accorded to representatives of foreign governments on temporary official missions;

(f) the same immunities and facilities in respect of their personal baggage as are accorded to diplomatic envoys; and also

(g) such other privileges, immunities and facilities not inconsistent with the foregoing as diplomatic envoys enjoy, except that they shall have no right to claim exemption from customs duties on goods imported (otherwise than as part of their personal baggage) or from excise duties or sales taxes.

SECTION 12. In order to secure, for the representatives of Members to the principal and subsidiary organs of the United Nations and to conferences convened by the United Nations, complete freedom of speech and independence in the discharge of their duties, the immunity from legal process in respect of words spoken or written and all acts done by them in discharging their duties shall continue to be accorded, notwithstanding that the persons concerned are no longer the representatives of Members.

SECTION 13. Where the incidence of any form of taxation depends upon residence, periods during which the representatives of Members to the principal and subsidiary organs of the United Nations and to conferences convened by the United Nations are present in a state for the discharge of their duties shall not be considered as periods of residence.

SECTION 14. Privileges and immunities are accorded to the representatives of Members not for the personal benefit of the individuals themselves but in order to safeguard the independent exercise of their functions in connection with the United Nations. Consequently a Member not only has the right but is under a duty to waive the immunity of its representative in any case where in the opinion of the Member the immunity would impede the course of justice, and it can be waived without prejudice to the purpose for which the immunity is accorded.

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SECTION 15. The provisions of sections 11, 12 and 13 are not applicable as between a representative and the authorities of the state of which he is a national or of which he is or has been the representative.

SECTION 16. In this Article the expression “representatives” shall be deemed to include all delegates, deputy delegates, advisers, technical experts and secretaries of delegations.

ARTICLE V

OFFICIALS

SECTION 17. The Secretary-General will specify the categories of officials to which the provisions of this Article and Article VII shall apply. He shall submit these categories to the General Assembly. Thereafter these categories shall be communicated to the Governments of all Members. The names of the officials included in these categories shall from time to time be made known to the Governments of Members.

SECTION 18. Officials of the United Nations shall:—

(a) be immune from legal process in respect of words spoken or written and all acts performed by them in their official capacity;

(b) be exempt from taxation on the salaries and emoluments paid to them by the Unite Nations;

(c) be immune from national service obligations;

(d) be immune, together with their spouses and relatives dependent on them, from immigration restrictions and alien registration;

(e) be accorded the same privileges in respect of exchange facilities as are accorded to the officials of comparable ranks forming part of diplomatic missions to the Government concerned;

(f) be given, together with their spouses and relatives dependent on them, the same repatriation facilities in time of international crisis as diplomatic envoys;

(g) have the right to import free of duty their furniture and effects at the time of first taking up their post in the country in question.

SECTION 19. In addition to the immunities and privileges specified in section 18, the Secretary-General and all Assistant Secretaries-General shall be accorded in respect of themselves their spouses and minor children, the privileges and immunities, exemptions and facilities accorded to diplomatic envoys, in accordance with international law.

SECTION 20. Privileges and immunities are granted to officials in the interests of the United Nations and not for the personal benefit of the individuals themselves. The Secretary-General shall have the right and the duty to waive the immunity of any official in any case where, in his opinion, the immunity would impede the course of justice and can be waived without prejudice to the interests of the United Nations. In the case of the Secretary-General, the Security Council shall have the right to waive immunity.

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SECTION 21. The United Nations shall co-operate at all times with the appropriate authorities of Members to facilitate the proper administration of justice, secure the observance of police regulations and prevent the occurrence of any abuse in connection with the privileges, immunities and facilities mentioned in this Article.

ARTICLE VI

EXPERTS ON MISSIONS FOR THE UNITED NATIONS

SECTION 22. Experts (other than officials coming within the scope of Article V) performing missions for the United Nations shall be accorded such privileges and immunities as are necessary for the independent exercise of their functions during the period of their missions, including the time spent on journeys in connection with their missions. In particular they shall be accorded:

(a) immunity from personal arrest or detention and from seizure of their personal baggage;

(b) in respect of words spoken or written and acts done by them in the course of the performance of their mission' immunity from legal process of every kind. This immunity from legal process shall continue to be accorded notwithstanding that the persons concerned are no longer employed on missions for the United Nations;

(c) inviolability for all papers and documents;

(d) for the purpose of their communications with the United Nations, the right to use codes and to receive papers or correspondence by courier or in sealed bags;

(e) the same facilities in respect of currency or exchange restrictions as are accorded to representatives of foreign governments on temporary official missions;

(f) the same immunities and facilities in respect of their personal baggage as are accorded to diplomatic envoys.

SECTION 23. Privileges and immunities are granted to experts in the interests of the United Nations and not for the personal benefit of the individuals themselves. The Secretary-General shall have the right and the duty to waive the immunity of any expert in any case where, in his opinion, the immunity would impede the course of justice and it can be waived without prejudice to the interests of the United Nations.

ARTICLE VII

UNITED NATIONS LAISSEZ-PASSER

SECTION 24. The United Nations may issue United Nations laissez-passer to its officials. These laissez-passer shall be recognized and accepted as valid travel documents by the authorities of Members, taking into account the provisions of section 25.

SECTION 25. Applications for visas (where required) from the holders of United Nations laissez-passer, when accompanied by a certificate that they are traveling on the business of the United Nations, shall be dealt with as speedily as possible. In addition, such person shall be granted facilities for speedy travel.

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SECTION 26. Similar facilities to those specified in section 25 shall be accorded to experts and other persons who, though not the holders of United Nations laissez-passer, have a certificate that they are travelling on the business of the United Nations.

SECTION 27. The Secretary-General, Assistant Secretaries-General and Directors traveling on United Nations laissez-passer on the business of the United Nations shall be granted the same facilities as are accorded to diplomatic envoys.

SECTION 28. The provisions of this Article may be applied to the comparable officials of specialized agencies if the agreements for relationship made under Article 63 of the Charter so provide.

ARTICLE VIII

SETTLEMENT OF DISPUTES

SECTION 29. The United Nations shall make provisions for appropriate modes of settlement of:

(a) disputes arising out of contracts or other disputes of a private law character to which the United Nations is a party;

(b) disputes involving any official of the United Nations who by reason of his official position enjoys immunity, if immunity has not been waived by the Secretary-General.

SECTION 30. All differences arising out of the interpretation or application of the present Convention shall be referred to the International Court of Justice, unless in any case it is agreed by the parties to have recourse to another mode of settlement. If a difference arises between the United Nations on the one hand and a Member on other hand, a request shall be made for an advisory opinion on any legal question involved in accordance with Article 96 of the Charter and Article 65 of the Statute of the Court. The opinion given by the Court shall be accepted as decisive by the parties.

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Date: 29-05-2025

THE UNITED NATIONS (DECLARATION OF DEATH OF MISSING PERSONS) ACT, 1956

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1. Short title and commencement
2. Provisions of the Schedule to have the force of law
3. Powers to make declaration in respect of certain persons having disappeared subsequent to 1945
4. Power to make rules
5. [Repeal.]

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THE UNITED NATIONS (DECLARATION OF DEATH OF MISSING PERSONS) ACT, 1956

ACT NO. VII OF 1956

[11th April, 1956]

An Act to give effect to the United Nations Convention on the Declaration of Death of Missing Persons.

WHEREAS it is expedient to give effect to the United Nations Convention on the Declaration of Death of Missing Persons ;

It is hereby enacted as follows :—

1. Short title and commencement.— (1) This Act may be called the United Nations (Declaration of Death of Missing Persons) Act, 1956.

(2) It shall extend to the whole of Pakistan and shall come into force at once.

2. Provisions of the Schedule to have the force of law.— (1) Notwithstanding anything to the contrary contained in any other law for the time being in force, the provisions set out in the Schedule to this Act, of the Convention on Declaration of Death of Missing Persons, adopted by the United Nations Conference on the Declaration of Death of Missing Persons, on the 6th Day of April, 1950, shall have the force of law in Pakistan.

(2) The [2][Federal Government] may by notification in the official Gazette amend the said Schedule in conformity with any amendments duly made in the provisions of the said Convention.

3. Powers to make declaration in respect of certain persons having disappeared subsequent to 1945. —(1) Where in pursuance of any international agreement, convention or other instrument it is necessary or permissible to make a declaration of death in respect of persons having disappeared subsequent to 1945 under circumstances similar to those mentioned in the provisions set out in the Schedule to this Act, the [1][Federal Government] may, by notification in the official Gazette, declare that the said provisions or such of them as it may deem necessary or convenient for giving effect to the said agreement, convention or other instrument, shall apply with such adaptations as may be necessary to the persons specified in the notification, and thereupon the said provisions shall apply accordingly and notwithstanding anything to the contrary contained in any other law for the time being in force, shall in such application have the force of law in Pakistan.

(2) The persons to be specified in the notification as aforesaid may be specified in such manner as the [2][Federal Government] may think fit.

4. Power to make rules. —The [1][Federal Government] may make rules for carrying out the purposes of this Act.

5. (Repeal.) Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and II Sch.

[1]Subs. by F.A.O., 1975, Art. 2 and Table.

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(See sections 2 and 3)

ARTICLE 1

Scope

1. The present Convention provides for declarations of death of persons whose last residence was in Europe, Asia or Africa who have disappeared in the years 1939-1945, under circumstances affording reasonable ground to infer that they have died in consequence of events of war or of racial, religious, political or national persecution.

However, members of armed forces serving in Europe, Asia or Africa shall not, by reason only of such service, be considered as having had their residence in those continents.

2. Contracting States may, by notification to the Secretary-General of the United Nations, extend its application to persons having disappeared subsequently to 1945 under similar circumstances. Such extension shall only apply as between those States which have made such notification.

3. The persons covered by paragraphs 1 and 2 of this article will be hereafter referred to as "missing persons".

ARTICLE 2

Competent tribunals

1. The term "tribunal", as used in the present Convention, shall apply to all authorities empowered ratione materioe to determine the fact of death under the governing domestic law.

2. Subject to paragraph 1 of this article, the following tribunals shall be competent *ratione loci* to receive applications and to issue declarations of death : —

(i) The tribunal of the place of the last domicile of the missing person or of his last voluntary or involuntary residence ;

(ii) The tribunal, in the country of which the missing person was a national, competent under applicable domestic law or, in its absence, the tribunal of the capital of that country ;

(iii) The tribunal of the place of the situs of property of the missing person ;

(iv) The tribunal of the place of decease of the missing person ;

(v) The tribunal of the place of domicile or residence of the applicant in the case of an application filed by any of the following relatives ; ascendants, descendants, adopted children and their issue, brothers and sisters and their issue, uncles, aunts or spouse.

3. However, any Contracting State shall be entitled to designate for the whole or a part of its territory one or several tribunals to which it will transfer or assign the competence which the

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preceding paragraph would have conferred on any of its tribunals. Such designation shall be communicated to the Secretary-General.

4. When an applicant has applied to a Tribunal considered by him as competent under the preceding paragraphs of the present article, he shall not be entitled to make a subsequent application to another tribunal unless he has withdrawn his first application before judgment has been rendered or unless the first tribunal does not regard itself as competent to deal with the application.

ARTICLE 3

Application for declaration of death

1. Any competent tribunal in each Contracting State shall, at the instance of any natural or juridical person having a legal interest in the matter or of an authority charged with the protection of the public interest, or acting on its own motion, issue a declaration of death of a missing person provided that all of the following requirements are met:

(i) Such missing person had his last residence in Europe, Asia or Africa ;

(ii) Such missing person disappeared in the years 1939 — 1945 ;

(iii) The circumstances of the disappearance afford reasonable ground to infer that the missing person died in consequence of events of war or of racial, religious, political or national persecution ;

(iv) A period of at least five (5) years has elapsed since the last known date on which the missing person was probably alive, as indicated by the reception of news or the occurrence of any other fact before the tribunal;

(v) In the course of the proceedings for the issuance of such declaration, public notice has been give reasonably designed to afford the alleged descendant an opportunity to make known that he is alive.

2. Only the following natural or juridical persons shall be considered as having a legal interest within the meaning of the preceding paragraph:

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(i) Persons who may be entitled to, or have an interest, other than that of a creditor, in any part of the missing person’s estate under a will or intestacy ;

(ii) Persons who may be entitled to, or have an interest, other than that of a creditor, in any property the devolution or distribution of which may depend either on the survival or death or on the date of death of the missing person ;

(iii) Persons whose personal status may be affected by the survival or death of the missing person ; and

(iv) Persons desirous of adopting the minor children of the missing person.

ARTICLE 4

Date of death

1. In issuing a declaration of death, the competent tribunal shall determine the date and the time of death, taking into consideration any evidence or indication regarding the circumstances or the period in which death occurred.

2. In the absence of any such evidence or indication, the date of death shall be fixed at the date of disappearance.

3. The date of disappearance shall be the date of the last known indication of the existence of the missing person. It shall be determined by the tribunal taking into accounts facts brought to its attention and, in particular, the last news of the missing person.

4. In the absence of any evidence or indication regarding the time of death, it shall be declared to have taken place at the last moment of the declared day of death.

ARTICLE 5

Effects of declarations of death

1. Declarations of death issued in conformity with the present Convention in one Contracting State shall constitute in the other Contracting States prima facie evidence of death and the date of death until contrary evidence is submitted.

2. However, the Contracting States may by special arrangements, which shall be notified to the Secretary-General, grant broader effects than those provided for in the preceding paragraph to the declarations of death issued in their respective territories.

ARTICLE 6

Effects of declarations issued prior to the entry into force of the Convention.

Declarations of death issued in one of the Contracting States before the entry into force of the Convention shall have, in the territory of other Contracting States, the validity of a declaration issued under this Convention if the issuing tribunal certifies that the declaration satisfies the conditions and requirements which are at present contained in articles 1, 2 and 3 of this Convention. However, property or other rights acquired in such territory before such a declaration is presented shall not thereby be impaired.

ARTICLE 7

Res judicata of declarations issued prior to the entry into force of the Convention.

This Convention shall not be construed as impairing the force of res judicata of final declarations of death having acquired the force of res judicata before the entry into force of the Convention.

ARTICLE 8

International Bureau for Declarations of Death

1. There shall be established within the framework of the United Nations an International Bureau for Declarations of Death. The Secretary-General of the United Nations shall determine its seat, composition, organisation and method of operation.

2. A central registry shall be established in the Bureau.

3. The working languages of the International Bureau shall be English and French.

4. The Bureau shall be empowered to receive from Governments or individuals authenticated copies of Declarations of Death of Missing Persons, as defined in article 1 of the present Convention, issued before the entry into force of the present Convention.

ARTICLE 9

Communication of applications

1. A tribunal to which an application for declaration of death is made or which has initiated such a proceeding on its own motion, shall, within fifteen days, communicate to the International Bureau the following information, in so far as possible:

(i) Full name of the missing person ;

(ii) Names and, if practicable, addresses of the closest relatives ;

(iii) Place and date of birth of the missing person ;

(iv) His habitual residence ;

(v) His last known voluntary or involuntary residence ;

(vi) Any information as to his nationality ;

(vii) The last known date on which the missing person was probably alive according to the application ;

(viii) Names and addresses of the applicant, his interest and relationship, if any, to the missing person ;

(ix) Date of institution of the proceedings.

2. If the Bureau ascertains that a proceeding is already pending before another tribunal, it shall immediately notify the tribunal to which the later application has been made. Such tribunal shall suspend its proceedings pending a final decision by the other tribunal and shall inform the applicant of the tribunal before which proceedings have already been instituted and of the name of the other applicant. The Bureau shall also inform the tribunal to which the first application has been made of the application subsequently made to another tribunal.

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ARTICLE 10

Publication and communication of decisions

1. A tribunal issuing a decision under the present Convention shall communicate its decision to the International Bureau within fifteen days from the date on which such decision becomes final, whether the decision is positive or negative. Such communication shall contain the date of the decision and the date fixed as the date of death, or a short statement of the grounds for denying the application.

2. The International Bureau shall publish, periodically, lists of all applications and final decisions as well as of certifications issued in accordance with article 6, which are communicated to it, and it shall also include therein any declarations of death which it may receive under paragraph 4 of article 8. It shall simultaneously send notice of the applications, decisions and certifications to the close relatives whose names are communicated to it in accordance with paragraph 1 (ii) of article 9 of the present Convention. The International Bureau shall also transmit to any tribunal in which an application has been filed for a declaration of death the grounds for any previous denial by any other tribunal of an application for a declaration of death concerning the same missing person.

3. A declaration of death shall not be issued in accordance with the present Convention until the expiration of three months from the publication of the application by the International Bureau.

4. If a final declaration of death is under reconsideration in the country where it was issued under the present Convention, the application for reconsideration and the decision which will be rendered thereon shall be subject to the provisions of paragraphs 1 and 2 of this article. This provision shall also apply to the declarations certified in accordance with article 6.

ARTICLE 11

Letters rogatory

1. The Contracting States shall be bound to execute letters rogatory relating to proceedings under the Convention in accordance with their domestic law and practice and international agreements concluded or to be concluded.

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2. The transmission of letters rogatory shall be effected by the usual methods. However, Contracting States may also transmit such letters rogatory through the International Bureau.

ARTICLE 12

Exemption from costs, and free legal aid

Aliens instituting proceedings under the present Convention shall be granted exemption from all costs and charges, and free legal aid in all cases where, under the national law, such exemption or aid is granted in like proceedings to nationals of the country where a proceeding is pending. Indigent applicants shall be exempt from the requirements of posting security for costs which are imposed on aliens alone.

[ARTICLES 13 AND 14 OMITTED]

ARTICLE 15

Approval by the General Assembly

The establishment of the International Bureau provided for in article 8 shall require the approval of the General Assembly of the United Nations.

[ARTICLES 16 AND 17 OMITTED]

ARTICLE 18

Settlement of Disputes

If a dispute shall arise between Contracting States relating to the interpretation or application of the present Convention, and if such dispute has not been settled by other means, it shall be referred to the International Court of Justice. The dispute shall be brought before the Court either by the notification of a special agreement or by a unilateral application of one of the Parties to the dispute.

ARTICLE 19

Reservations

Any State may subject its accession to the present Convention to reservations which may be formulated only at the time of accession.

If a Contracting State does not accept the reservations which another State may have thus attached to its accession, the former may, provided it does so within ninety days from the date on which the Secretary-General will have transmitted the reservations to it, notify the Secretary-General that it considers such accession as not having entered into force between the State making the reservation and the State not accepting it. In such case, the Convention shall be considered as not being in force between such two States.

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[ARTICLE 20 OMITTED]

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RI - Date: 13-05-2024

THE RECOGNITION AND ENFORCEMENT (ARBITRATION AGREEMENTS AND FOREIGN ARBITRAL AWARDS) ACT, 2011

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SCHEDULE

THE RECOGNITION AND ENFORCEMENT (ARBITRATION AGREEMENTS AND FOREIGN ARBITRAL AWARDS) ACT, 2011

ACT NO. XVII of 2011

[*15th* July, *2011*]

An Act to provide for the recognition and enforcement of arbitration agreements and foreign arbitral awards

WHEREAS, Pakistan is a signatory to the United Nations Convention on the Recognition and Enforcement of Foreign Arbitral Awards, 1958;

WHEREAS**,** it is expedient to provide for the recognition and enforcement of arbitration agreements and foreign arbitral awards pursuant to the said Convention and for matters connected therewith;

It is hereby enacted as follows:—

1. Short title, extent, application and commencement.—(1) This Act may be called the Recognition and Enforcement (Arbitration Agreements and Foreign Arbitral Awards) Act, 2011.

(2) It extends to the whole of Pakistan.

(3) It shall apply to arbitration agreements made before, on or after the date of commencement of this Act.

(4) It shall not apply to foreign arbitral awards made before the 14th day of July, 2005.

(5) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) "Article" means an Article of Convention;

(b) "Contracting State" means a State which is a Party to the Convention;

(c) "Convention" means the United Nations Convention on the Recognition and Enforcement of Foreign Arbitral Awards, done at New York on 10th June, 1958, set forth in the Schedule to this Act;

(d) "Court" means a High Court and such other superior court in Pakistan as may be notified by the Federal Government in the official Gazette; and

(e) "foreign arbitral award" means a foreign arbitral award made in a Contracting State and such other State as may be notified by the Federal Government, in the official Gazette.

3. Jurisdiction of Court.— (1) Notwithstanding anything contained in any other law for the time being in force, the Court shall exercise exclusive jurisdiction to adjudicate and settle matters related to or arising from this Act.

(2) An application to stay legal proceedings pursuant to the provisions of Article II of the Convention may be filed in the Court, in which the legal proceedings are pending.

(3) In the exercise of its jurisdiction, the Court shall,—

(a) follow the procedure as nearly as may be provided for the Code of Civil Procedure, 1908 (Act V of 1908); and

(b) have all the powers vested in a civil court under the Code of Civil Procedure, 1908 (Act V of 1908).

4. Enforcement of arbitration agreements.—(1) A party to an arbitration agreement against whom legal proceedings have been brought in respect of a matter which is covered by the arbitration agreement may, upon notice to the other party to the proceedings, apply to the court in which the proceedings have been brought to stay the proceedings in so far as they concern that matter.

(2) On an application under sub-section (1), the court shall refer the parties to arbitration, unless it finds that the arbitration agreement is *null* and *void*, in operative or incapable of being performed.

5. Furnishing of documents.—(1) The party applying for recognition and enforcement of foreign arbitral award under this Act shall, at the time of the application, furnish documents to the Court in accordance with Article IV of the Convention.

6. Enforcement of foreign arbitral award.—(1) Unless the Court pursuant to section 7, refuses the application seeking recognition and enforcement of a foreign arbitral award, the Court shall recognise and enforce the award in the same manner as a judgment or order of a court in Pakistan.

(2) A foreign arbitral award which is enforceable under this Act, shall be treated as binding for all purposes on the persons as between whom it was made, and may accordingly be relied on by any of those persons by way of defence, set off or otherwise in any legal proceedings in Pakistan.

7. Unenforceable foreign arbitral awards.— The recognition and enforcement of a foreign arbitral award shall not be refused except in accordance with Article V of the Convention.

8. Inconsistency. — In the event of any inconsistency between this Act and the Convention, the Convention shall prevail to the extent of the inconsistency.

9. Powers to make Rules. The Federal Government may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

10. Repeal and saving.—(1) The Arbitration (Protocol and Convention) Act, 1937 (VI of 1937) (hereinafter in this section referred to as "the Act") is hereby repealed.

(2) Notwithstanding the repeal of the Act, it shall continue to have effect in relation to foreign arbitral awards made—

(a) before the date of commencement of this Act; and

(b) within the meaning of section 2 of the Act which are not foreign arbitral awards within the meaning of section 2 of this Act.

SCHEDULE

[*See* Section 2 (a)]

CONVENTION ON THE RECOGNITION AND ENFORCEMENT OF FOREIGN ARBITRAL AWARDS

Done at New York on 10 June, 1958
Entry into force: 7 June, 1959

ARTICLE I

1. This Convention shall apply to the recognition and enforcement of arbitral awards made in the territory or a State other than the State where the recognition and enforcement of such awards are sought, and arising out of differences between persons, whether physical or legal. It shall also apply to arbitral awards not considered as domestic awards in the State where their recognition and enforcement are sought.

2. The term "arbitral awards" shall include not only awards made by arbitrators appointed for each case but also those made by permanent arbitral bodies to which the parties have submitted.

3. When signing, ratifying or acceding to this Convention, or notifying extension under article X hereof, any State may on the basis of reciprocity declare that it will apply the Convention to the recognition and enforcement of awards made only in the territory of another Contracting State. It may also declare that it will apply the Convention only to differences arising out of legal relationships, whether contractual or not, which are considered as commercial under the national law of the State making such declaration.

ARTICLE II

1. Each Contracting State shall recognize an agreement in writing under which the parties undertake to submit to arbitration all or any differences which have arisen or which may arise between them in respect of defined legal relationship, whether contractual or not, concerning a subject matter capable of settlement by arbitration.

2. The term "agreement in writing" shall include an arbitral clause in a contract or an arbitration agreement, signed by the parties or contained in an exchange of letters or telegrams.

3. The court of a Contracting State, when seized of an action in a matter in respect of which the parties have made an agreement within the meaning of this article shall, at the request of one of the parties, refer the parties to arbitration, unless it finds that the said agreement is *null* and *void*, inoperative or incapable of being performed.

ARTICLE III

Each Contracting State shall recognize arbitral awards as binding and enforce them in accordance with the rules of procedure of the territory where the award is relied upon, under the conditions laid down in the following articles. There shall not be imposed substantially more onerous

conditions or higher fees or charges on the recognition or enforcement of arbitral award to which this Convention applies than are imposed on the recognition or enforcement of domestic arbitral awards.

ARTICLE IV

1. To obtain the recognition and enforcement mentioned in the preceding article, the party applying for recognition and enforcement shall, at the time of the application, supply:—

(a) The duly authenticated original award or a duly certified copy thereof;

(b) The original agreement referred to in article II or a duly certified copy thereof.

2. If the said award or agreement is not made in an official language of the country in which the award is relied upon, the party applying for recognition and enforcement of the award shall produce a translation of these documents into such language. The translation shall be certified by an official or sworn translator or by a diplomatic or consular agent.

ARTICLE V

1. Recognition and enforcement of the award may be refused, at the request of the party against whom it is invoked, only if that party furnishes to the competent authority where the recognition and enforcement is sought, proof that: —

(a) The parties to the agreement referred to in article II were, under the law applicable to them, under some incapacity, or the said agreement is not valid under the law to which the parties have subjected it or, failing any indication thereon, under the law of the country where the award was made; or

(b) The party against whom the award is invoked was not given proper notice of the appointment of the arbitrator or of the arbitration proceedings or was otherwise unable to present his case; or

(c) The award deals with a difference not contemplated by or not falling within the terms of the submission to arbitration, or it contains decisions on matters beyond the scope of the submission to arbitration, provided that, if the decisions on matters submitted to arbitration, can be separated from those not so submitted, that part of the award which contains decisions on matters submitted to arbitration may be recognized and enforced; or

(d) The composition of the arbitral authority or the arbitral procedure was not in accordance with the agreement of the parties, or, failing such agreement, was not in accordance with the law of the country where the arbitration took place; or

(e) The award has not yet become binding on the parties, or has been set aside or suspended by a competent authority if the country in which, or under the law of which, that award was made.

2. Recognition and enforcement of an arbitral award may also be refused if the competent authority in the country where recognition and enforcement is sought finds that:—

(a) The subject matter of the difference is not capable of settlement by arbitration under the law of that country; or

(b) The recognition or enforcement of the award would be contrary to the public policy of that country.

ARTICLE VI

If an application for the setting, aside or suspension of the award has been made to a competent authority referred to in article V (1) (e), the authority before which the award is sought to be relied upon may, if it considers it proper, adjourn the decision on the enforcement of the award and may also, on the application of the party claiming enforcement of the award, order the other party to give suitable security.

ARTICLE VII

1. The provisions of the present Convention shall not affect the validity of multilateral or bilateral agreements concerning the recognition and enforcement of arbitral awards entered into by the Contracting States nor deprive any interested party of any right he may have to avail himself of an arbitral award in the manner and to the extent allowed by the law or the treaties of the country where such award is sought to be relied upon.

2. The Geneva Protocol on Arbitration Clauses of 1923 and the Geneva Convention on the Execution of Foreign Arbitral Awards of 1927 shall cease to have effect between contracting States on their becoming bound and to the extent that they become bound, by this Convention.

ARTICLE VIII

1. This Convention shall be open-until 31st December 1958 for signature on behalf of any Member of the United Nations and also on behalf of any other State which is or hereafter becomes a member of any specialized agency of the United Nations, or which is or hereafter becomes a party to the Statute of the International Court of Justice, or any other State to which an invitation has been addressed by the General Assembly of the United Nations.

2. This Convention shall be ratified and the instrument of ratification shall be deposited with the Secretary-General of the United Nations.

ARTICLE IX

1. This Convention shall be open for accession to all States referred to in article VIII.

2. Accession shall be effected by the deposit of an instrument of accession with the Secretary-General of the United Nations.

ARTICLE X

1. Any State may, at the time of signature, ratification or accession declare that this Convention shall extent to all or any of the territories for the international relations of which it is responsible. Such a declaration shall take effect when the Convention enters into force for the State concerned.

2. At any time thereafter any such extension shall be made by notification addressed to the Secretary-General of the United Nations and shall take effect as from the ninetieth day after the day of receipt by the Secretary-General of the United Nations of this notification, or as from the date of entry into force of the Convention for the State concerned, whichever is the later.

3. With respect to those territories to which this Convention is not extended at the time of signature, ratification or accession, each state concerned shall consider the possibility of taking the necessary steps in order to extent the application of this Convention to such territories, subject, where necessary for Constitutional reasons, to the consent of the Governments of such territories.

ARTICLE XI

In the case of a federal or non-unitary State, the following provisions shall apply:—

(a) With respect to those articles of this Convention that come within the legislative jurisdiction of the federal authority, the obligations of the federal Government shall to this extent be the same as those of Contracting States which are not federal States;

(b) With respect to those articles of this Convention that come within the legislative jurisdiction of constituent states or provinces which are not, under the constitutional system of the federation, bound to take legislative action, the federal Government shall bring such articles with a favourable recommendation to the notice of the appropriate authorities of constituent states or provinces at the earliest possible moment;

(c) A Federal State Party to this Convention shall, at the request of any other Contracting State transmitted through the Secretary-General of the United Nations, supply a statement of the law and practice of the federation and its constituent units in regard to any particular provision of this Convention, showing the extent to which effect has been given to that provision by legislative or other action.

ARTICLE XII

1. This Convention shall come into force on the ninetieth day following the date of deposit of the third instrument of ratification or accession.

2. For each State ratifying or acceding to this Convention after the deposit of the third instrument of ratification or accession, this Convention shall enter into force on the ninetieth day after deposit by such State of its instrument of ratification or accession.

ARTICLE XIII

1. Any Contracting State may denounce this Convention by a written notification to the Secretary-General of the United Nations Denunciation shall taken effect one year after the date of receipt of the notification by the Secretary-General.

2. Any State which has made a declaration or notification under Article X may, at any time thereafter, by notification to the Secretary-General of the United Nations, declare that this

Convention shall cease to extend to the territory concerned one year after the date of the receipt of the notification by the Secretary-General.

3. This Convention shall continue to be applicable to arbitral awards in respect of which recognition or enforcement proceedings have been instituted before the denunciation takes effect.

ARTICLE XIV

A Contracting State shall not be entitled to avail itself of the present Convention against other Contracting States except to the extent that it is itself bound to apply the denunciation take effect.

ARTICLE XV

The Secretary-General of the United Nations shall notify the States contemplated in Article VIII of the following:—

(a) signatures and ratifications in accordance with Article VIII;

(b) accessions in accordance with Article IX;

(c) declarations and notifications under Articles I, X and XI;

(d) the date upon which this Convention enters into force in accordance with Article XII; and

(e) denunciations and notifications in accordance with Article XIII.

ARTICLE XVI

1. This Convention, of which the Chinese, English, French, Russian and Spanish texts shall be equally authentic, shall be deposited in the archives of the United Nations.

2. The Secretary-General of the United Nations shall transmit a certified copy of the Convention to the States contemplated in Article VIII.

———————

RGN Dated 27-02-2026

THE ORGANIZATION OF THE ISLAMIC CONFERENCE (IMMUNITIES AND PRIVILEGES) ACT, 1977

CONTENTS

1. Short title, extent and commencement
2. Provisions of the Agreement
3. Certificate of the Federal Government
4. Power to amend the Schedule
5. *Repeal*

THE SCHEDULE

THE PAKISTAN CODE

THE ORGANIZATION OF THE ISLAMIC CONFERENCE (IMMUNITIES AND PRIVILEGES) ACT, 1977

Act No. XV of 1977

[*5th May 1977*]

An Act to give effect in Pakistan to the Agreement on Immunities and Privileges of the Organization of the Islamic Conference.

WHEREAS Pakistan has ratified the Agreement on Immunities and Privileges of the Organization of the Islamic Conference;

AND WHEREAS it is necessary to give effect in Pakistan to the said Agreement on Immunities and Privileges of the Organization of the Islamic Conference:

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Organization of the Islamic Conference (Immunities and Privileges) Act, 1977.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Provisions of the Agreement. Notwithstanding anything contained in any other law for the time being in force, the provisions of the Agreement on Immunities and Privileges of the Organization of the Islamic Conference set out in the Schedule shall, subject to the other provisions of this Act, have the force of law in Pakistan.

3. Certificate of the Federal Government. If any question arises whether or not any person is entitled to any privileges or immunities under this Act, a certificate issued by or under the authority of the Federal Government stating any fact relating to that question shall be conclusive evidence of that fact.

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4. Power to amend the Schedule. The Federal. Government may, by notification in the official Gazette, amend the Schedule in conformity with any amendment duly made in the provisions of the said Agreement set out therein.

5. *[Repeal.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.*

THE SCHEDULE

(*See* section 2)

Whereas Article VI (8) of the Charter of the Organization of the Islamic Conference provides:

"In the light of the agreement on immunities and privileges to be approved by the conference,

(a) The Conference shall enjoy, in the Member States, such legal capacity, immunities and privileges as may be necessary for the exercise of its functions and the fulfilment of its objectives.

(b) Representatives of member states shall enjoy such immunities and privileges as may be necessary for the exercise of their functions related to the Conference.

(c) The staff of the Conference shall enjoy the immunities and privileges necessary for the performance of their duties as decided upon by the conference".

So, it is required to clarify in detail the varieties of immunities and privileges indicated in the Chapter, and to specify its scope and cases in which it is applied, in order to facilitate the functions of the Organization of Islamic Conference.

Consequently, the Seventh Islamic Conference of Foreign Ministers held in Istanbul, Republic of Turkey, on 12—15 May, 1976 (13—16 Jamad Al Awal 1396 H) has approved the Convention placed below.

CHAPTER I
JURIDICAL PERSONALITY

Article 1.—The Organization of the Islamic Conference shall possess juridical personality. It shall have the capacity:

(a) To acquire and dispose of immovable and movable property.

(b) To contract.

(c) To institute legal proceedings.

CHAPTER II
PROPERTY, FUNDS AND ASSETS

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Article 2.—The Organization of the Islamic Conference, its property and assets, wherever located shall enjoy immunity from every form of legal process unless the Secretary General decides to waive it expressly. It is, however, understood that no waiving of immunity shall extend in any measure of execution.

Article 3 —The premises occupied by the Organization of the Islamic Conference shall be inviolable. Its property and assets wherever located shall be immune from search, requisition, confiscation, expropriation and any other form of interference, by executive action.

Article 4.—The archieves of the organization of the Islamic Conference and in general, all documents belonging to it, or held by it, shall be inviolable.

Article 5.— The organization may,

(1) Hold funds, gold or currency of any kind and operate accounts in any currency according to laws and regulations in force in Member States.

(2) Be free to transfer its funds, gold or currency from one country to another, or within the country itself and to convert it to any currency according to the laws in force. The Organization may not, in contravention of any regulations prevailing, transfer any amount of funds subjected to special restrictions, from one State, in excess of any amount it has brought into that State.

Article 6.—In exercising its rights under Article 5 above, the Organization of the Islamic Conference shall pay due regard to any representations made by Member States, in so far as is considered that effect can be given to such representations, without detriment to the interest of the Organization and Member States.

Article 7.—The Organization of the Islamic Conference, its movable or immovable property and its assets shall be:

(a) Exempt from all direct taxes, except for those which are no more than charges for public utility services.

(b) Exempt from custom duties, prohibitions and restrictions on imports and exports in respect of articles imported or exported by the Organization, for its official use. Such articles, imported under such exemption, will not be sold in the country in which they were imported, except with the consent of the Government concerned.

(c) Exempt from custom imports and exports in respect of its publications.

CHAPTER III
FACILITIES IN RESPECT OF COMMUNICATIONS

Article 8.—The Organization of the Islamic Conference shall enjoy, in the territory of each Member States, for its official communications, treatment not less favourable than that accorded by that State to the communications of any other Member State, including its diplomatic mission, in the matter of priorities and rates, taxes on mails, cables, telegrams, radiograms, telephone and other communications and press rates for information to the press and radio. No censorship shall be applied to such official correspondence and other official communications.

Article 9.—The Organization of the Islamic Conference may use codes and despatch its correspondence by couriers or bags, which shall have the same immunities and privileges as diplomatic couriers and bags.

CHAPTER IV
THE REPRESENTATIVES OF MEMBER STATES

Article 10.—Representatives of Member States to the Principal and subsidiary organs and conferences convened by the organization, shall while exercising their functions and during the journey to and from the place of the meeting, enjoy the following immunities and privileges:

(a) Immunity from personal arrest or detention and from seizure of their personal baggage.

(b) Immunity from legal process of any kind in respect of words spoken or written and acts done by them in their capacity as representatives.

(c) Inviolability for all papers and documents.

(d) The right to use codes and to receive papers or correspondence by courier or in sealed bags.

(e) Exemption in respect of themselves and their spouses from immigration restrictions, aliens registration or national service obligations in the State they are visiting, or through which they are passing, in the exercise of their functions.

(f) The facilities accorded to the representatives of Foreign States, delegated on temporary official missions in respect of laws relevant to currency and exchange.

(g) The same immunities and facilities, in respect of their personal baggage, as accorded to diplomatic envoys.

(h) Such other immunities and facilities, not inconsistent with the foregoing as diplomatic envoys, except that they shall have no right to claim exemptions from custom and excise duties on articles imported other than their personal baggage.

Article 11.—Representatives of Member States in the Principal and subsidiary organs of the Organisation of the Islamic Conference and in conferences convened by the Organization, shall enjoy immunity from legal process in respect of words spoken or written, in discharging their duties as representatives of their States in the organs of the Organization of the Islamic Conference notwithstanding that the persons concerned are no longer the representatives of Member States.

Article 12.—Periods spent by the representatives of Member States to the Principal and Subsidiary organs of the Organization of the Islamic Conference and to conferences convened by it, in one of the territories of a Member State shall not be considered as periods of residence for the assessment of a tax, if the imposition of such a tax is consequent upon such period of residence.

Article 13.—Immunities and privileges are accorded to the representatives of Member States, not for their personal benefits, but in order to safeguard the independent exercise of their functions in connection with the Organization.

Consequently, Member States are under a duty to waive the immunity of its representatives in any case where that immunity would impede the course of justice and if it can be waived without prejudice to the purpose for which the immunity is accorded.

Article 14.—The provisions of Articles 10, 11 and 12 are not applicable as between a representative and the authorities of the State of which he is a national, or the approval of the State concerned.

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Article 15.—The expression "representative" in this chapter shall be deemed to include all delegates of Members States, their deputies, advisers and technical experts and secretaries of delegations.

Article 16.—Permanent State representatives shall enjoy, during the period of their representing their State in the organs of the Organization of the Islamic Conference, such immunities and privileges as are enjoyed by diplomatic envoys.

Article 17.—The Secretary General shall notify Member States of the Organization, as well as their permanent delegates and members of permanent committees.

CHAPTER V
OFFICIALS

Article 18—The Conference of the Organization of the Islamic Conference shall specify the categories of officials to which the provisions of Article 19 and the provisions of Chapter VII shall be applied, as submitted to it by the Secretary General, who will communicate to Member States periodically a list containing the names of such officials and their respective functions.

Article 19.—(I) Officials of the General Secretariat of the Organization of the Islamic Conference shall, regardless of their nationality, enjoy the following immunities and privileges :—

(a) Immunity from legal process, in respect of words spoken or written and all acts performed by them in their official capacity.

(b) Exemption from taxation on their salaries and emoluments paid or to be paid to them by the organization.

(c) Furthermore, officials of the General Secretariat other than the nationals of the host country, shall enjoy:

(1) Together with their spouses and relatives dependent on them, immunity from immigration restrictions and aliens registration.

(2) Facilities as accorded to diplomatic envoys of their ranks, accredited with the Government concerned, in respect of the regulations-relevant to exchange.

(3) Facilities as accorded to diplomatic envoys, in times of international crisis, as regards their repatriation.

(4) The right to import, free of duty, their furniture and effects, within a year from the time of first taking up their posts in the country in question.

Article 20.—Further to the immunities and privileges provided for by the two preceding articles, the Secretary General, Assistant Secretary General and senior officials, together with their spouses and their minor children, shall enjoy immunities and privileges, which are accorded, in accordance with international law, to diplomatic envoys, each according to his rank.

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Article 21.—Immunities and privileges are accorded to officials to safeguard the interests of the Organization and to enable it to accomplish its aims. The Secretary General has the right and is under the duty to waive the immunity of officials of the General Secretariat, not specified in the foregoing article, in any case where, in his opinion, the immunity would impede the administration of justice and can be waived without prejudice to the interests of the Organization. As to officials provided for in that article, the immunity is not to be waived except by approval of the Conference.

Article 22.—The Organization shall cooperate, at all times, with the appropriate authorities of Member States, to ensure the proper administration of justice, secure the observance of police regulations and prevent the occurrence of any abuse, in connection with the immunities and privileges mentioned in this chapter.

CHAPTER VI
EXPERTS

Article 23.— Experts (other than officials coming within the scope of Chapter V) performing missions for the Organization of the Islamic Conference shall be accorded, in execution of a resolution to be adopted by its Conference, such immunities and privileges, necessary for the fulfilment of that mission, more specifically:

(a) Immunity from personal arrest or detention and from seizure of their personal baggage except in emergency cases as decided by the concerned state upon consultation with the Secretary General.

(b) Immunity from legal process, even after termination of their mission, in respect of words spoken or written and acts done by them in the course of the performance of their mission.

(c) Inviolability for all papers and documents of the Organization.

(d) The same facilities in respect of currency of exchange restrictions, as are accorded to representatives of foreign States on temporary official missions according to the laws in force in the concerned country.

(e) The same immunities and facilities in respect of their personal baggages as are accorded to diplomatic envoys.

(f) Immunity, together with their spouses and minor children, from immigration restrictions and alien registration and the obligation concerning national service.

Article 24.—Immunities and privileges are granted to experts: in the interest of the Organization. The Secretary General shall have the right and the duty to waive the immunity in any case where, in his opinion, the immunity would impede the course of justice and it can be waived without prejudice to the interests of the Organization.

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CHAPTER VII
LAISSEZ-PASSER

Article 25.—The General Secretariat of the Organization of Islamic Conference may issue laissez-passers to its officials. Those laissez-passers shall be recognised and accepted as valid travel documents by Members States, taking into account the provisions of the two succeeding articles.

Article 26.—Visas are accorded to holders of laissez-passer at the request of the General Secretariat, in which it is stated that they are officials, travelling on official business of the General Secretariat.

Article 27.—The grant of visas shall be dealt with as speedily as possible. In addition, such persons shall be granted facilities for speedy travel. .

Article 28.—Similar facilities to those specified in Article 27 shall be accorded to experts and officials who, though not holders of Organization laissez-passer, have a certificate that they are travelling on business for the Organization.

CHAPTER VIII
SETTLEMENT OF DISPUTES

Article 29.—The Organization of the Islamic Conference shall establish an organ for settling:

(a) Disputes arising out of contracts, or other disputes of a private law character, to which the Organization is a party.

(b) Disputes involving any official of the Organization, who, by reason of his official capacity, enjoys immunity, when immunity has not been waived in his case.

FINAL PROVISIONS

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Article 30.—Nothing under the provisions of this Agreement shall affect the authority of a Member State to take such measures as are deemed appropriate for the safety of its territory or the establishment of security and maintenance of public order.

Any State deeming necessary the taking of such steps, shall hasten to contact the General Secretariat, as circumstances will permit, in order to agree upon the measures warranting the safeguarding of the interests of the Organization.

Article 31—The Immunity whenever provided in this Convention either clearly or inclusively-means official immunity and not personal.

Article 32—The Secretary General shall submit this Convention to Member States of the Organization for accession thereto.

Article 33—This Convention shall become binding on the respective State as from the date of the deposit of the instruments of accession by that State with the General Secretariat. The Secretary General shall inform all Member States of the Organization of the deposit of each accession.

Article 34.—The accession of any Member State to this Convention means that it has accomplished the Constitutional processes to render this Agreement part of its internal legislation.

Article 35.—This Convention shall remain binding on each acceding State, as long as it remains a Member State of the Organization.

Article 36.—The Organization of the Islamic Conference may conclude supplementary agreements for proper application of the provisions of this Convention, within the territories of Member States.

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THE INTERNATIONAL MONETARY FUND AND BANK ACT, 1950

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3. State Bank to be depository for International Fund and Bank

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5. Certain provisions of Agreements to have force of law

5A. Special drawing rights not to be taxed

6. [Omitted]

7. [Omitted]

SCHEDULE

THE PAKISTAN CODE

THE INTERNATIONAL MONETARY FUND AND BANK ACT, 1950

ACT NO. XLIII or 1950

[19th *April*, 1950]

An Act to implement the International Monetary Fund and Bank Agreements

WHEREAS, at the United Nations Monetary and Financial Conference held at Bretton Woods, New Hamp Shire, in July 1944, Articles of the following agreements were drawn up, and set out in the Final Act of the said Conference that is to say, —

(a) an agreement (hereinafter referred to as the Fund Agreement) for the establishment and operation of an international body to be called the International Monetary Fund (hereinafter referred to as the International Fund), and

(b) an agreement (hereinafter referred to as the Bank Agreement) for the establishment and operation of an international body to be called the International Bank for Reconstruction and Development (hereinafter referred to as the International Bank);

[1][AND WHEREAS a resolution relating to certain amendments to the Articles of the Fund Agreement for the purpose of enabling the establishment of a facility based on special drawing rights in the International Fund and improving the present rules and practices of the Fund based on developments in world economic conditions and the experience of the Fund since the adoption of the Articles of Agreement, was adopted by the Board of Governor of the Fund on May 31, 1968;]

It is hereby enacted as follows :—

1. Short title, extent and commencement.—(1) This Act may be called the International Monetary Fund and Bank Act, 1950.

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[2][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date as the [3][Federal Government] may, by notification in the Official Gazette, appoint.

[1]Added by Ordinance No. X of 1969, s. 2.
[2]Subs. by Ordinance No. XLII of 1959, s. 2.
[3]Subs. by The Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.

2. Payment to International Fund and Bank.—(1) There shall be paid out of the revenues of the [1][Federal Government] all such sums as may from time to time be required for the purpose of paying—

(a) the subscriptions payable by the [1][Federal Government] to the International Fund [2][section 1, and section 3], of Article III of the Fund Agreement, and to the International Bank under [3][paragraphs (a) and (c) of section 3 of Article II of the Bank Agreement];

(b) any sums payable by the [1][Federal Government] to the International Fund under [2][section 11 of Article V] of the Fund Agreement, and to the International Bank under section 9 of Article II of the Bank Agreement;

(c) any charges payable by the [1][Federal Government] to the International Fund under section 8 of Article V of the Fund Agreement;

(d) any sums required for implementing the guarantee of the [1][Federal Government] referred to in section 3 of Article XIII of the Fund Agreement;

(e) any compensation required to be paid by the [1][Federal Government] to the International Fund or to any member thereof under [2][Schedule J or Schedule K] to the Fund Agreement [4][;]

[2][(f) any charges or assessment payable by the Federal Government to the International Fund under sections 2 and 4 of Article XX, section 3 of Article XXIV, Article XXV (c) and paragraph 5 of Schedule 1 of the Fund Agreement.]

(2) The [1][Federal Government] may, if it thinks fit so to do, create and issue to the International Fund or International Bank, in such form as it thinks fit, any such non-interest bearing and non-negotiable notes or other obligations as are provided for by [2][section 4] of Article III of the Fund Agreement and section 12 of Article V of the Bank Agreement.

[4][(3) Any funds required on account of the following shall be provided by the [1][Federal Government] from out of a special deposit account to be maintained by it with the State Bank of Pakistan, namely :—

(a) cancellation of drawing rights under section 2 of [2][Article XVIII] of the Fund Agreement;

(b) elimination of negative balance under paragraph (f) of section 2 of [2][Article XVIII] of the Fund Agreement ;

(c) payments against cumulative allocation on termination under paragraph (b) of section 2 of [2][Article XXIV] of the Fund Agreement ; and

[1]Subs. by The Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[2]Subs. by Ordinance No. XXXVII of 1977, s. 2.
[3]Subs. by Ordinance No. XLII of 1959 s. 3.
[4]Added by Ordinance No. X of 1969, s. 3.

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(d) payments against cumulative allocations on liquidation under [1][Article XXV] (c) of the Fund Agreement.]

[1][(4) The Federal Government may take all such steps as may be necessary to meet its obligation under paragraph (e) of section 3 of the amended Article V of the Fund Agreement.]

3. State Bank to be depository for International Fund and Bank. The State Bank of Pakistan (hereinafter referred to as the State Bank) shall be the depository of the Pakistan currency holdings of the International Fund and International Bank.

4. Power to call for information.—(1) Where under section 5 of Article VIII of the Fund Agreement, the International Fund required the [2][Federal Government] to furnish it with any information, the [2][Federal Government], or if generally or specially authorised by the [2][Federal Government] in this behalf, the State Bank may by order in writing require any person to furnish to such officer or other person as may be specified in the order such detailed information as the [2][Federal Government] or the State Bank, as the case may be, may determine to be essential for the purpose of complying with the request of the International Fund; and any person so required shall be bound to furnish such information.

(2) Every officer or person to whom any information is required to be furnished under this section shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (XLV of 1860).

(3) No information obtained under this section shall be furnished to the International Fund in such detail as to disclose the affairs of any person, and the provisions of [3][sections 122 and sub-sections (1), (2) and (3) of section 150 of the Income-Tax Ordinance, 1979 (XXXI of 1979)], shall apply in relation to information obtained under this section as they apply to the particulars referred to in that section.

(4) A determination of the [2][Federal Government] or the State Bank under sub-section (1) as to the extent of detail in which information is to be furnished shall be final, and in any prosecution under section 176 or section 177 of the Pakistan Penal Code in respect of any information required to be furnished under this section, it shall not be a defence to assert that the information was required to be furnished in greater detail than was essential for the purpose of complying with the request of the International Fund.

(5) No prosecution for an offence in respect of any information required to be furnished under this section shall be instituted except with the previous sanction of the [2][Federal Government].

[1]Subs. by Ordinance No. XXXVII of 1977, s. 2.
[2]Subs. by The Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[3]Subs. by the Federal Laws (Revision & Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and 2nd Sch.

5. Certain provisions of Agreements to have force of law. Notwithstanding anything to the contrary contained in any other law, the provisions of the Fund and Bank Agreements set out in the Schedule shall have the force of law in [1][Pakistan]:

Provided that nothing in section 9 of Article IX of the Fund Agreement or in section 9 of Article VII of the Bank Agreement shall be construed as—

(a) entitling the International Fund or International Bank to import into [1][Pakistan] goods free of any duty of customs without any restriction on their subsequent sale therein, or

(b) conferring on the International Fund or International Bank any exemption from duties or taxes which form part of the price of goods sold or which are in fact no more than charges for services rendered.

[2][**5A. Special drawing rights not to be taxed.—**Without prejudice to the privileges and immunities specified in Part I of the Schedule, no tax of any kind shall be levied on special drawing rights or on operations or transactions in special drawing rights.]

6. [3][* * * * * * *]

7. [3][* * * * * * *]

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[1]Subs. by Ordinance No. XLII of 1959, s. 4.
[2]Added by Ordinance No. X of 1969, s. 4.
[3]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and 2nd Schedule.

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(*See* section 5)

PROVISIONS OF AGREEMENTS WHICH SHALL HAVE FORCE OF LAW.

Part I

Fund Agreement

Paragraph (b) of section 2 of Article VIII.—Exchange contracts which involve the currency of any member and which are contrary to the exchange control regulations of that member maintained or imposed consistently with this Agreement shall be unenforceable in the territories of any member.

ARTICLE IX

STATUS, IMMUNITIES AND PRIVILEGES.

Section 1. *Purpose of Article*.—To enable the Fund to fulfil the functions with which it is entrusted, the status, immunities and privileges set forth in this Article shall be accorded to the Fund in the territories of each member.

Section 2. *Status of the Fund*.—The Fund shall possess full juridical personality, and, in particular, the capacity—

(i) to contract;

(ii) to acquire and dispose of immovable and movable property;

(iii) to institute legal proceedings.

Section 3. *Immunity from judicial process*.—The Fund, its property and its assets, wherever located and by whomsoever held, shall enjoy immunity from every form of judicial process except to the extent that it expressly waives its immunity for the purpose of any proceedings or by the terms of any contract.

Section 4. *Immunity from other action*.—Property and assets of the Fund, wherever located and by whomsoever held, shall be immune from search requisition, confiscation, expropriation or any other form of seizure by executive or legislative action.

Section 5. *Immunity of archives*.—The archives of the Fund shall be inviolable.

Section 6. *Freedom of assets from restrictions*.—To the extent necessary to carry out the operations provided for in this Agreement, all property and assets of the Fund shall be free from restrictions, regulations, controls and moratoria of any nature.

Section 7. *Privilege for communications*.—The official communications of the Fund shall be accorded by members the same treatment as the official communications of other members.

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Section 8. *Immunities and privileges of officers and employees.*—All governors, executive directors, alternates, officers and employees of the Fund—

(i) shall be immune from legal process with respect to acts performed by them in their official capacity except when the Fund waives this immunity;

(ii) not being local nationals, shall be granted the same immunities from immigration restrictions, alien registration requirements and national service obligations and the same facilities as regards exchange restrictions as are accorded by members to the representatives, officials, and employees of comparable rank of other members;

(iii) shall be granted the same treatment in respect of traveling facilities as is accorded by members to representatives, officials, and employees of comparable rank of other members.

Section 9. *Immunities from taxation*.—(a) The Fund, its assets, property, income and its operations and transactions authorised by this Agreement, shall be immune from all taxation and from all customs duties. The Fund shall also be immune from liability for the collection or payment of any tax or duty.

(b) No tax shall be levied on or in respect of salaries and emoluments paid by the Fund to executive directors, alternates, officers or employees of the Fund who are not local citizens, local subjects, or other local nationals.

(c) No taxation of any kind shall be levied on any obligation or security issued by the Fund, including any dividend or interest thereon, by whomsoever held—

(i) which discriminates against such obligation or security solely because of its origin; or

(ii) if the sole jurisdictional basis for such taxation is the place or currency in which it is issued, made payable or paid, or the location of any office or place of business maintained by the Fund.

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PART II

BANK AGREEMENT

ARTICLE VII

STATUS, IMMUNITIES AND PRIVILEGES

Section 1. *Purpose of Article.*—To enable the Bank to fulfil the functions with which it is entrusted, the status, immunities and privileges set forth in this Article shall be accorded to the Bank in the territories of each member.

Section 2. *Status of the Bank.*— The Bank shall possess full juridical personality, and, in particular, the capacity—

(i) to contract;

(ii) to acquire and dispose of immovable and movable property;

(iii) to institute legal proceedings.

Section 3. *Position of the Bank with regard to judicial process*.—Actions may be brought against the Bank only in a court of competent jurisdiction in the territories of a member in which the Bank has an office, has appointed an agent for the purpose of accepting service or notice of process, or has issued or guaranteed securities. No actions shall, however, be brought by members or persons acting for or deriving claims from members. The property and assets of the Bank shall, wheresoever located and by whomsoever held, be immune from all forms of seizure, attachment or execution before the delivery of final judgment against the Bank.

Section 4. *Immunity of assets from seizure.*—Property and assets of the Bank, wherever located and by whomsoever held, shall be immune from search, requisition, confiscation, expropriation or any other form of seizure by executive or legislative action.

Section 5. *Immunity of archives*.—The archives of the Bank shall be inviolable.

Section6. *Freedom of assets from restrictions*.—To the extent necessary to carry out the operations provided for in this Agreement and subject to the provisions of this Agreement, all property and assets of the Bank shall be free from any restrictions, regulations, controls and moratoria of any nature.

Section 7. *Privilege for communications*.—The official communications of the Bank shall be accorded by each member the same treatment that it accords to the official communications of other members.

Section 8. *Immunities and privileges of officers and employees*.—All governors, executive directors, alternates, officers and employees of the Bank—

(i) shall be immune from legal process with respect to acts performed by them in their official capacity except when the Bank waives this immunity;

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(ii) not being local nationals, shall be accorded the same immunities from immigration restrictions, alien registration requirements and national service obligations and the same facilities as regards exchange restrictions as are accorded by members to the representatives, officials, and employees of comparable rank of other members;

(iii) shall be granted the same treatment in respect of traveling facilities as is accorded by members to representatives, officials and employees of comparable rank of other members.

Section 9. *Immunities from taxation*.—(a) The Bank, its assets, property, income and its operations and transactions authorised by this Agreement, shall be immune from all taxation and from all customs duties. The Bank shall also be immune from liability for the collection or payment of any tax or duty.

(b) No tax shall be levied on or in respect of salaries and emoluments paid by the Bank to executive directors, alternates, officials or employees of the Bank who are not local citizens, local subjects, or other local nationals.

(c) No taxation of any kind shall be levied on any obligation or security issued by the Bank (including any dividend or interest thereon) by whomsoever held—

(i) which discriminates against such obligation or security solely because it is issued by the Bank; or

(ii) if the sole jurisdictional basis for such taxation is the place or currency in which it is issued, made payable or paid, or the location of any office or place of business maintained by the Bank.

(d) No taxation of any kind shall be levied on any obligation or security guaranteed by the Bank (including any dividend or interest thereon) by whomsoever held—

(i) which discriminates against such obligation or security solely because it is guaranteed by the Bank; or

(ii) if the sole jurisdictional basis for such taxation is the location of any office of place of business maintained by the Bank.

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Date: 03-02-2025

THE INTERNATIONAL DEVELOPMENT ASSOCIATION ORDINANCE, 1960

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1. Short title, extent and commencement
2. Definitions.
3. Financial provisions
4. State Bank to be depository for this Association
5. Certain provisions of Agreement to have force of law

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THE INTERNATIONAL DEVELOPMENT ASSOCIATION ORDINANCE, 1960

ORIDNANCE NO. XX OF 1960

[2nd June, 1960]

An Ordinance to give effect to an international agreement for the establishment and operation of an International Development Association and for purposes connected therewith.

WHEREAS Articles of Agreement of the International Development Association have, on the twenty sixth day of January, 1960, been approved by the Executive Directors of the International Bank for Reconstruction and Development, hereinafter referred to as the Bank, and deposited in the archives of the Bank for signature and acceptance on behalf of Governments;

AND WHEREAS it is expedient to provide for the participation of Pakistan in the said Association in pursuance of the aforesaid Agreement;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement.— (1) This Ordinance may be called the International Development Association Ordinance, 1960.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such date[1] as the [2][Federal Government] may, by notification in the official Gazette, appoint.

2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Agreement" means any Agreement which may be signed and accepted on behalf of the Government of Pakistan in pursuance of the Articles of Agreement approved by the Executive Directors of the Bank on the twenty-sixth day of January, 1960, providing for the establishment and operation of an international body to be called the International Development Association;

(b) "Association" means the International Development Association; and

(c) "member" means a member of the Association.

3. Financial provisions.— (1) There shall be paid out of the [3][Federal Consolidated Fund] all such sums as may be required for the purpose of making payments on behalf of the Government of Pakistan under section 2 (a) of Article II and section 1 (a) of Article III of the Agreement.

(2) Any sums received by the Government of Pakistan from the Association in pursuance of the Agreement shall be paid into the Federal Consolidated Fund.

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[1]I.e., the 7th October, 1960, see Gaz. of P., 1960, Ext., p. 1493a.
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[3]Subs. ibid., for "Central Consolidated Fund" which was previously subs. by A.o., 1964, Art. 2 and Sch., for "Federal Consolidated Fund", to read as above.

[2][(3) The [1][Federal Government] may, if it thinks fit so to do, create and issue to the International Development Association, in such form as it thinks fit, any such non-interest bearing and non-negotiable notes or other obligations as are provided for by paragraph (e) of section 2 of Article II of the Agreement.]

4. State Bank to be depository for this Association.— The State Bank of Pakistan shall be the depository of the Pakistan currency holdings or other assets of the Association.

5. Certain provisions of Agreement to have force of law.— Notwithstanding anything to the contrary contained in any other law, the provisions of Article VIII of the Agreement set out in the Schedule shall have the force of law in Pakistan :

Provided that nothing in section 9 thereof shall be construed as—

(a) entitling the Association to import into Pakistan goods free of any duty of customs without any restriction on their subsequent sale therein, or

(b) conferring on the Association any exemption from duties or taxes which form part of the price of goods sold or which are in fact no more than charges for services rendered.

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(See section 5)

Provisions of Agreement which shall have force of law

THE AGREEMENT

ARTICLE VIII

Status, Immunities and Privileges

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SECTION 1.— ***Purposes of Article***

To enable the Association to fulfil the functions with which it is entrusted, the status, immunities and privileges provided in this Article shall be accorded to the Association in the territories of each member.

SECTION 2.— ***Status of the Association***

The Association shall possess full juridical personality and, in particular, the capacity:

(i) to contract;

(ii) to acquire and dispose of immovable and movable property;

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Sub-section (3) added by the International Development Association (Amdt.) Ordinance, 1960 (XLIX of 1960), s. 2.

(iii) to institute legal proceedings.

SECTION 3.— ***Position of the Association with regard to Judicial Process.***

Actions may be brought against the Association only in a court of competent jurisdiction in the territories of a member in which the Association has an office, has appointed an agent for the purpose of accepting service or notice of process, or has issued or guaranteed securities. No actions shall, however, be brought by members or persons acting for or deriving claims for members. The property and assets of the Association shall, wheresoever located and by whomsoever held, be immune from all forms of seizure, attachment or execution before the delivery of final judgment against the Association.

SECTION 4.— ***Immunity of Assets from Seizure***

Property and assets of the Association, wherever located and by whomsoever held, shall be immune from search, requisition, confiscation, expropriation or any other form of seizure by executive or legislative action.

SECTION 5.— ***Immunity of Archives***

The archives of the Association shall be inviolable.

SECTION 6.— ***Freedom of Assets from Restrictions***

To the extent necessary to carry out the operations provided for in this Agreement and subject to the provisions of this Agreement, all property and assets of the Association shall be free from restrictions, regulations, controls and moratoria of any nature.

SECTION 7.— ***Privileges for Communications***

The Official Communications of the Association shall be accorded by each member the same treatment that it accords to the official Communications of other members.

SECTION 8.— ***Immunities and Privileges of Officers and Employees.***

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All Governors, Executive Directors, Alternates, Officers and employees of the Association:

(i) shall be immune from legal process with respect to acts performed by them in their official capacity except when Association waives this immunity ;

(ii) not being local national, shall be accorded the same immunities from immigration restrictions, alien registration requirements and national service obligations and the same facilities as regards exchange restriction as are accorded by members to the representatives, official, and employees of comparable rank of other members;

(iii) shall be granted the same treatment in respect of travelling facilities as is accorded by members to representatives, officials and employees of comparable rank of other members.

SECTION 9.— ***Immunities from Taxation***

(a) The Association, its assets, property, income and its operations and transactions authorized by this Agreement, shall be immune from all taxation and from all customs duties. The Association shall also be immune from liability for the collection or payment of any tax or duty.

(b) No tax shall be levied on or in respect of salaries and emoluments paid by the Association to Executive Directors, Alternates, officials or employees of the Association who are not local citizens, local subjects, or other local national.

(c) No taxation of any kind shall be levied on any obligation or security issued by the Association (including any dividend or interest thereon) by whomsoever held:

(i) which discriminates against such obligation or security solely because it is issued by the Association; or

(ii) if the sole jurisdictional basis for such taxation is the place or currency in which it is issued, made payable or paid, or the location of any office or place of business maintained by the Association.

(d) No taxation of any kind shall be levied on any obligation or security guaranteed by the Association (including any dividend or interest thereon by whomsoever held:

(i) which discriminates against such obligation or security solely because it is guaranteed by the Association; or

(ii) if the sole jurisdictional basis for such taxation is the location of any office or place of business maintained by the Association.

SECTION 10.— ***Application of Article***

Each member shall take such action as is necessary in its own territories for the purpose of making effective in terms of its own law the principles set forth in this Article and shall inform the Association of the detailed action which it has taken.

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Date:- 22.04.2024

THE CIVIL DEFENCE ACT, 1952

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1. Short title, extent and commencement

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5. Protection of action taken under the Act

6. Compensation to be paid in accordance with certain principles for compulsory acquisition of immovable property, etc

7. Power to acquire requisitioned property

8. Release from requisition

9. Delegation of powers under the Acts

10. Repeal of Ordinance, (VIII of 1951)

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THE CIVIL DEFENCE ACT, 1952

[1]ACT No. XXXI OF 1952

[29th April, 1952]

An Act to provide for powers to secure the civil defence of [2][Pakistan].

WHEREAS it is necessary to provide for powers to secure the civil defence of [2][Pakistan] ; It is hereby enacted as follows

1. **Short title, extent and commencement.**—(1) This Act may be called the Civil Defence Act, 1952.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

[3][1A. Definitions.— In this Act, unless there is anything repugnant in the subject or context

[4][(1) civil defence includes any measures not amounting to actual combat, for affording defence against any form of hostile attack by a foreign power or for depriving any form of hostile attack by a foreign power of its effect, whether such measures are taken before, during or after the time of the attack and includes remedial measures during calamity or disaster in peace time.]

(2) 'Civil Defence Services' means the services formed wholly or mainly to meet the needs of civil defence.

2. Power to make rules.— The [1][Federal Government] may by notification in the official Gazette make such rules2 as appear to it to be necessary or expedient for securing the civil defence of [3][Pakistan].

(2) Without prejudice to the generality of the powers conferred by subsection (1) such rules may provide for, or may empower any authority to make orders providing for, all or any of the following matters, namely**.**—

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[1]For Statement of Objects and Reasons, see Gazette of Pakistan, Ext., 1952, page 287.
The Act has been applied to---
(i) Baluchistan, with certain modification, with effect on and from the thirtieth day of April, 1952, see Gazette of Pakistan, 1952, Pt. I, p 190 ; extended to the Leased Areas of Baluchistan, by the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, see Gazette of P. 1953, Pt. I, p. 152 ; and It has also been extended to—
(i) the Baluchistan States Union, by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953) ; and
(ii) Khairpur State, by the Khairpur (Federal Laws) (Extension) Order, 1953 (G.G.O. 5 of 1953).
The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance,1960 (37 of 1960), S. 2.

2 Subs. by A.O., 1964, Art. 2 and Sch., for "the Federation".

3 Section 1A, ins. by the Civil Defence (Amdt.) Act, 1966 (10 of 1966), s. 2.

4 Subs. by the Civil Defence (Amdt.) Act, 1994 (22 of 1994) , s. 2. for cl. (1).

[5] Subs. by F.A.O., 1975 Art. 2 and Table, for "Central Government".

[6] For the Civil Denfence (Special Powers) Rules, 1951, see Gaz. of P., 1951, Ext., pp. 571582 ; for the Railway Air Raid Precautions Services Rules, 1951, *see ibid*., pp. 667672. 3 Subs. by A.O., 1964, Art. 2 and Sch., for "the Federation".

[1][(a) the constitution, enrolment, discipline, powers, duties, privileges and protection of Civil Defence Services ;

(b) Preventing or prohibiting anything likely to assist the enemy or to prejudice the successful conduct of civil defence including acts, publication or communications prejudicial to civil defence ;

(c) requiring any person or class of persons to comply with any scheme of civil defence ;

(d) ensuring the safety of any place or thing used or intended to be used for the purposes of Government or a local authority, the protection of which is considered necessary or expedient for securing civil defence ;

(e) the control of lights, sounds and vehicles ;

(f) the control of trade or industry for the purposes of regulating or increasing the supply of, and the obtaining of information with regard to, articles or things of any description whatsoever which may be used in connection with the conduct of civil defence ;

(g) the provision, storage and maintenance of commodities and material required for the conduct of civil defence ;

(h) the provision, construction, maintenance or alteration of buildings, premises or other structures required for the conduct of civil defence ;

(i) the measures for preventing and dealing with the outbreak of fire;

(j)` preventing or controlling any use of uniforms, whether official or otherwise, flags, official decorations like medals, badges and other insignia and anything similar thereto, where such use is calculated or likely to deceive the public or to prejudice civil defence ;

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(k) the salvage of damaged buildings and property and disposal of the dead ;

(l) the evacuation of areas and the removal of property or animals therefrom ;

(m) the accommodation in any area of persons evacuated from another area and the regulation of the conduct of evacuated persons accommodated in such area ;

(n) the billeting of evacuated persons ;

(o) the instruction of members of the public in civil defence ;

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[1] Subs. by the Civil Defence (Amdt.) Act, 1966 (10 of 1966), s. 3, for the original clauses (a), (b),(c), (d), (e), (f), (g) and (h).

(p) the entry into, and search of, any place reasonably suspected of being used for any purpose prejudicial to civil defence and for the seizure and disposal of anything found there and reasonably suspected of being used for such purpose;

(q) the requisition of property and acquisition thereof.]

(3) The rules made under sub-section (1) may further—

(a) provide for the arrest and trial of persons contravening any of the rules or any order issued thereunder ;

(b) provide that any contravention of, or any attempt to contravene, and any abetment of, or attempt to abet, the contravention of any of the provisions of the rules, or any order issued under any such provision, shall be punishable with imprisonment for a term which may extend to five years, or with fine which may extend to five thousand rupees or with both [1][;]

[2][(c) provide for the seizure, detention and forfeiture of any property in respect of which such contravention, attempt or abetment as is referred to in clause (b) has been committed ;

(d) prescribe the duties and powers of public servants and other persons as regards preventing the contravention of, or securing the observance of, the rules or any order issued thereunder ;

(e) provide for preventing the obstruction and deception of, and disobedience to, any person acting, and interfering with any notice issued, in pursuance of the rules or of any order issued thereunder ;

(f) make provision prohibiting attempts to screen from punishment any person contravening any of the rules or any order issued thereunder.]

3. Ordinary avocations of life to be interferred with as little as possible.— An authority or a person acting in pursuance of this Act shall interfere with the ordinary avocations of life and the enjoyment of property as title as may be consonant with the purpose of ensuring the public safety and interest and the defence of Pakistan.

4. Savings as to orders.— (1) No order made in exercise of any power conferred by or under this Act shall be called in question in any Court.

(2) Where an order purports to have been made and signed by an authority in exercise of any power conferred by or under this Act, the Court shall, within the meaning of the Evidence Act (1 of 1872,) presume that such order was so made by that authority.

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[1] Subs. by the Civil Defence (Amdt.) Act, 1966 (10 of 1966), s.3.
[2] New clauses (c) to (f) added *ibid.*

5. Protection of action taken under the Act.— (1) No suit, prosecution or other legal proceeding shall tie against any person for anything which is in good faith done or intended to be done in pursuance of this Act or any rules made thereunder or any order issued under any such rule.

(2) Save as otherwise expressly provided under this Act, no suit or other legal proceeding shall lie against the [1][Government[for any damage caused or likely to be caused by anything in good faith done or intended to be done in pursuance of this Act or any rules made thereunder or any order issued under any such rule.

6. Compensation to be paid in accordance with certain principles for compulsory acquisition of immovable property, etc.— (1) Where under Section 7 by or under any rule made under this Act any action is taken of the nature described in [2][Article 24] of the Constitution there shall be paid compensation, the amount of which shall be determined in the manner, and in accordance with the principles, hereinafter set out, that is to say :___

(a) Where the amount of compensation can be fixed by agreement, it shall be paid in accordance with such agreement.

(b) Where no such agreement can be reached, the [3][Federal Government] shall appoint as arbitrator a person qualified [2]* * * for appointment as a Judge of a High Court.

(c) The [3][Federal Government] may, in any particular case, nominate a person having expert knowledge of the kind of property which has been acquired, to be an assessor to assist the arbitrator, and where such nomination is made, the person to be compensated may also nominate an assessor for the said purpose.

(d) At the commencement of the proceedings before the arbitrator, the [3][Federal Government] and the person to be compensated shall state what in their respective opinions is a fair amount of compensation.

(e) The arbitrator in making his award shall have regard to**.**—

(i) the provisions of sub-section (1) of Section 23 of the Land Acquisition Act, 1894 (I of 1894), so far as the same can be made applicable ; and

(ii) whether the acquisition is of a permanent or temporary character :

Provided that where any property requisitioned under any rule made under this Act, is subsequently acquired under Section 7 or any such rule, the arbitrator in any proceedings in connection with such acquisition shall, for the purposes of the provisions of the said Section 23, take into consideration the marketvalue of

[4](2) The original words, brackets, figures and commas "under subsection (3) ofsection 220 of the Government of India Act, 1935," omitted by A.O., 1961, Art. 2 and Sch. (with ef ect from the 23 rd March, 1956).

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[1]Subs. by A.O., 1961, Art. 2., for "Crown" (*with ef ect from the 23 rd March, 1956*).

[2]The original words, bracket and figures "sub-section (2) of section 299 of the Government of India Act, 1935" were first subs. by A.O., 1961, Art. 2 and Sch., amended by A.O., 1964, Art. 2 and Sch. And Subs. by the Federal Laws (Revision and Declaration) Ordinance 1981 (27 of 1981), s. 3 and 2 and Sch., to read as above.

[3]Subs by F.A.O, 1975 Art.2 and Table, for "Central Government".

[4]the original words bracket, figures and commas "under sub-section(3) of section 220 of the Government of India Act, 1935,"omitted by A.O., 1961, Art.2 and Sch. *(with effect from the 23rd March, 1956)*

the property at the date of its requisition as aforesaid and not at the date of its subsequent acquisition.

(f) An appeal shall lie to the High Court against any award of an arbitrator except in cases where the amount awarded does not exceed an amount prescribed in this behalf by rule made by the 1 [Federal Government].

(g) Save as provided in this section and in any rules made thereunder, nothing in any law for the time being in force shall apply to arbitrations under this section.

(2) The [1][Federal Government] may make rules for the purpose of carrying into effect the provisions of this section.

(3) In particular and without prejudice to the generality of the foregoing power, such rules may prescribe.

(a) the procedure to be followed in arbitrations under this section ;

(b) the principles to be followed in apportioning the costs of proceedings before the arbitrator and on appeal ;

(c) the maximum amount of an award against which no appeal shall lie.

7. Power to acquire requisitioned property.— (1) Without prejudice to any power to acquire property conferred by any rule made under this Act, any immovable property which has been requisitioned under any rule so made may in the manner provided by any such rules for the acquisition of property, be acquired in the circumstances and by the Government hereinafter specified, namely**.**—

(a) where any works have, during the period of requisition, been constructed on, in or over the property wholly or partly at the expense of any Government, by that Government if it decides that the value of, or the right to use, such works shall, by means of the acquisition of the property, be preserved or secured for the purposes of any Government ; or

(b) where the cost to any Government of restoring the property to its condition at the time of its requisition as aforesaid would, in the determination of that Government, be excessive having regard to the value of the property at that time, by that Government ;

and at the beginning of the day on which notice of such acquisition is served or published under the aforesaid rules, the immovable property shall vest in the acquiring Government free from any mortgage, pledge, lien or similar encumbrance, and the period of the requisition thereof shall end.

(2) Any decision or determination of a Government under subsection (1) shall be final, and shall not be called in question in any Court.

(3) For the purposes of this section, "works" includes buildings, constructions and improvements of the property, of every description.

[1]Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government

8. Release from requisition.— (1) Where any property requisitioned under any rule made under this Act is to be released from such requisition, the Government by which or under whose authority the property was requisitioned or any person generally or specially authorised by it in this behalf may, after such enquiry, if any, as it or he may in any case consider it necessary to make or cause to be made, specify by order in writing the person to whom possession of the property shall be given.

(2) The delivery of possession of the property to the person specified in an order under subsection (1) shall be a full discharge of the Government from all liabilities in respect of the property, but shall not prejudice any rights in respect of the property which any other person may be entitled by due process of law to enforce against the person to whom possession of the property is given.

9. Delegation of powers under the Acts.— The [1][Federal Government] may, by [2]notification in the official Gazette, direct that all or any of the powers or duties which under the provisions of this Act or rules made thereunder are conferred or imposed upon the 1 [Federal Government] shall be exercised or discharged by any officer or authority subordinate to it or by the Provincial Government ; and the Provincial Government may, by a like notification, direct that all or any of the powers or duties as aforesaid, to be exercised or discharged by it, shall be exercised and discharged by any officer or authority subordinate to it.

10. Repeal of Ordinance, **VIII of 1951.**— (1) The Civil Defence Ordinance, 1951, is hereby repealed.

(2) Every appointment, order or rule made under the Civil Defence (Special Powers) Ordinance, 1951 and maintained in force under the Civil Defence Ordinance, 1951 or made under the Civil Defence Ordinance, 1951, shall, if in force immediately before the commencement of this Act, and so far as it is not inconsistent with the provisions of this Act, be deemed to have been made under the provisions of this Act, and have effect accordingly subject to the provisions of this Act.

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1 Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government".
2 For such notification, see Gaz. of P., Ext., 1951, p. 582.